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★ DEC 10 2010 ★

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

BROOKLYN OFFICE

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RAFAEL CRUZ,

SUMMONS ISSUED
COMPLAINT AND
JURY DEMAND

-against-

CITY OF NEW YORK, SERGEANT DANIEL SBARRA
SHIELD NO. 5029, DETECTIVE GARY VANZANTEN
SHIELD NO. 7924, JOHN DOE OFFICERS 1-13,

10
5749
ECF CASE

Defendants.
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IRIZARRY, J.

AZRACK, M.J.

Plaintiff Rafael Cruz, by his attorneys, Stoll, Glickman & Bellina, LLP, for his complaint alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief through 42 U.S.C. §1983 for the violation of his Fourth and Fourteenth Amendment rights in addition to violations of the laws and Constitution of the State of New York.

2. The claim arises from a December 26, 2009 incident during which plaintiff came to the 81st precinct to pick up his ten year-old son. His son had been in his uncle's car when the uncle was pulled over and arrested. At the precinct, E.C. was questioned and harassed by officers. When plaintiff arrived to pick up E.C., he insisted several times to speak with the officer who was questioning his son. Defendants came into the waiting area and punched plaintiff in the face, kicked and punched him after he fell to the floor, and handcuffed him. When he was in handcuffs and being pulled through the precinct, officers pushed his head against a glass window, causing the glass to shatter. Defendants falsely accused plaintiff of attacking defendants and smashing his own face into the glass.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and under 42 U.S.C. §1983 and §1988 and the laws and Constitution of the State of New York.

5. The jurisdiction of this court is predicated upon 28 U.S.C. §§ 1331, 1343(a)(3) and (4), 1367(a) and the doctrine of pendent jurisdiction.

6. The amount in controversy exceeds \$75,000.00 excluding interest and costs.

VENUE

7. Venue is laid within the Eastern District of New York in that Defendant City of New York is located within and a substantial part of the events giving rise to the claim occurred within the boundaries of the Eastern District.

PARTIES

8. Plaintiff resided at all times here relevant in Kings County, City and State of New York.

9. The City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City

was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

10. Sergeant Daniel Sbarra was, at all times here relevant, a sergeant of the NYPD, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On information and belief, at all times relevant hereto, Defendant Sbarra was under the command of the Brooklyn North Narcotics Division and is sued in his individual capacity.

11. Police Officer Gary Vanzanten was, at all times here relevant, a police officer of the NYPD, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On information and belief, at all times relevant hereto, Defendant Vanzanten was plaintiff's "arresting officer" and was under the command of the Brooklyn North Narcotics Division. Defendant Vanzanten is sued in his individual capacity.

12. Police Officer John Does 1-13 were, at all times here relevant, police officers of the NYPD, and as such were acting in the capacities of an agent, servant and employee of the City of New York. On information and belief, at all times relevant hereto, John Does were either 81st precinct officers or Brooklyn North Narcotics Division officers and are sued in their individual capacities.

13. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

NOTICE OF CLAIM

14. Within 90 days of the events giving rise to these claims, plaintiff filed written notices of claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

15. On December 26, 2009, plaintiff's son E.C., who was ten years-old, was in a car with his nine year-old cousin, driven by E.C.'s uncle. E.C.'s uncle was pulled over and arrested. E.C. sent a text message to plaintiff to tell him that the police were taking him to the 81st precinct.

16. At the precinct, officers questioned E.C. and his nine year-old cousin, causing E.C. to cry. When officers left the room, E.C. was able to call his father, crying, to tell him that officers were questioning him.

17. When plaintiff Rafael Cruz arrived at the precinct, he asked to speak with the officer who was questioning his son. An officer told him he had to wait.

18. Plaintiff again demanded that his son not be questioned and to speak with the officer who had questioned his son.

19. Defendant officer came into the waiting area and punched plaintiff in the face.

20. Plaintiff stumbled and was punched, kneed, and kicked as he went to the ground and after he was on the ground by defendants and by John Doe officers, who followed. Defendants put handcuffs on plaintiff and told him he was under arrest.

21. When he was in handcuffs and being pulled through the precinct, defendants pushed his head against a glass window, causing the glass to shatter.

22. Defendants put plaintiff in a "bag", a device similar to a straight-jacket.

23. While plaintiff was in custody, he went to Woodhull Hospital Center in the "bag". Medical staff noted abrasions to the right side of plaintiff's face and pieces of glass in his hair line. Plaintiff was accompanied at the hospital by Brooklyn North Narcotics detective Shield No. 6484.

24. Defendants falsely accused plaintiff of attacking defendants and smashing his own face into the glass.

25. Plaintiff was in custody for approximately 24 hours.

26. After plaintiff was released from Central Booking, he went to Brooklyn Hospital Center complaining of a migraine, swollen face, neck and backache. The triage nurse noted swelling and mild tenderness to the side of plaintiff's face. Plaintiff was given CT scans to rule out facial fractures. He was given pain medication and discharged from the hospital.

27. On December 30, 2009, plaintiff went to Maimonides Medical Center complaining of headaches.

28. Plaintiff consented to an adjournment in contemplation of dismissal.

29. At all times during the events described above, the defendant police officers were engaged in a joint venture and formed an agreement to violate plaintiff's rights. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against plaintiff.

30. During all of the events above described, defendants acted maliciously and with intent to injure plaintiff.

DAMAGES

31. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

- a. Violation of his rights pursuant to the Fourth Amendment of the United States Constitution to be free from an unreasonable search and seizure of their persons;
- b. Violation of his rights pursuant to the Fourteenth Amendment of the United States Constitution to due process;
- c. Violation of his New York State Constitutional rights under Article 1, Section 12 to be free from an unreasonable search and seizure;
- d. Violation of his New York State Constitutional rights under Article 1, Section 6 to due process;
- e. Physical pain and suffering;
- f. Emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety; and
- g. Loss of liberty.

FIRST CAUSE OF ACTION

42 U.S.C. §1983

Excessive Force

(Against Officer Defendants)

32. The above paragraphs are here incorporated by reference.

33. By using excessive force against plaintiff, and failing to intervene on behalf of one another's unlawful and unconstitutional conduct, defendants deprived plaintiff of his rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. §1983, including, but not limited to, rights guaranteed by

the Fourth Amendment to the United States Constitution.

34. In addition, the officer defendants conspired amongst themselves to deprive plaintiff of his constitutional rights and took numerous steps in furtherance of such conspiracy, as set forth above.

35. The officer defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD officers. Said acts by officer defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said defendants acted willfully, knowingly and with the specific intent to deprive plaintiff of his constitutional rights secured by the United States Constitution.

36. As a direct and proximate result of the misconduct and the abuse of authority detailed above, plaintiff sustained the damages described above.

SECOND CAUSE OF ACTION
Assault and Battery
(Against All Defendants)

37. The above paragraphs are here incorporated by reference.

38. Upon approaching, pushing plaintiff to the ground, kicking and punching him, handcuffing him, and shoving his face into a glass window while in handcuffs, and arresting plaintiff, defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

39. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

40. Defendants used excessive and unnecessary force with plaintiff.

41. Defendants, their officers, agents, servants and employees, were responsible for

plaintiff's arrest, detention and imprisonment during this period of time. Defendant City, as employer of Officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

42. As a direct and proximate result of the misconduct and the abuse of authority detailed above, plaintiff sustained the damages described above.

THIRD CAUSE OF ACTION
42 U.S.C. § 1983
False Arrest and False Imprisonment
(Against Officer Defendants)

43. The above paragraphs are here incorporated by reference.

44. The officer defendants wrongfully and illegally arrested, detained and imprisoned plaintiff.

45. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of plaintiff was carried out without a valid warrant, without plaintiff's consent, and without probable cause or reasonable suspicion.

46. At all relevant times, defendants acted forcibly in apprehending, arresting, and imprisoning plaintiff.

47. Throughout this period, plaintiff was unlawfully, wrongfully, and unjustifiably held under arrest, deprived of his liberty, imprisoned and falsely charged.

48. At all times, the unlawful, wrongful, and false arrest and imprisonment of plaintiff was without basis and without probable cause or reasonable suspicion.

49. All of this occurred without any illegal conduct by plaintiff.

50. Plaintiff consented to an adjournment in contemplation of dismissal.

51. The officer defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as

NYPD officers. Said acts by officer defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said defendants acted willfully, knowingly and with the specific intent to deprive plaintiff of his constitutional rights secured by the United States Constitution.

52. As a direct and proximate result of the misconduct and the abuse of authority detailed above, plaintiff sustained the damages described above.

FOURTH CAUSE OF ACTION
False Arrest and False Imprisonment
(Against All Defendants)

53. The above paragraphs are here incorporated by reference.

54. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

55. Defendants intended to confine plaintiff, plaintiff was conscious of his confinement and did not consent to his confinement.

56. Plaintiff consented to an adjournment in contemplation of dismissal.

57. Defendants, their officers, agents, servants and employees, were responsible for plaintiff's arrest, detention and imprisonment during this period of time. Defendant City, as employer of Officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a direct and proximate result of the misconduct and the abuse of authority detailed above, plaintiff sustained the damages described above.

FIFTH CAUSE OF ACTION
Negligent Hiring & Retention

(Against City Defendant)

59. The above paragraphs are here incorporated by reference.

60. Upon information and belief, defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the physical and mental abuse sustained by plaintiff.

61. Upon information and belief, defendant City, through the NYPD, owed a duty of care, to plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated an injury to plaintiff or those in a position similar to plaintiff's as a result of this conduct.

62. Upon information and belief, defendant officers were incompetent and unfit for their positions. The City knew or should have known through exercise of reasonable diligence that the officer defendants were potentially dangerous.

63. Upon information and belief, Sergeant Daniel Sbarra has previously been named in lawsuits for excessive force and false arrest in Jones v. City of New York, Docket No. 09-CV-01088-RRM-RML, (pending in the Eastern District of New York), Roberson v. City of New York et al, 06-CV-00213-CPS-RML, E.D.N.Y., Ingram et al v. City of New York, et al, 08-CV-01055-KAM-VVP, E.D.N.Y., McKoy v. The City of New York, et al, 08-CV-02022-ENV-RLM, E.D.N.Y., and Labrew v. The City of New York et al, 07-CV-04641-DAB, S.D.N.Y. All of these cases, except for Jones v. City of New York, have settled for a total \$171,500. Officer Vanzanten has been sued in one other lawsuit, Bissette v. City of New York et al, 10-cv-00801-FB-JO which also settled. These cases are not reflected in defendants' personnel records and have not deterred repeated misconduct. The City of New York has failed to deter Sergeant Sbarra and Detective Vanzanten from violating New Yorkers' civil rights through investigation,

discipline, supervision, retraining, transfers, suspensions or removal.

64. Upon information and belief, Defendant City's negligence in hiring and retaining the Sergeant Sbarra and Vanzanten proximately caused plaintiff's injuries.

65. Upon information and belief, because of the defendant City's negligent hiring and retention of defendant officers, plaintiff incurred damages described above.

SIXTH CAUSE OF ACTION
MUNICIPAL AND SUPERVISORY LIABILITY
(Against Defendant City)

66. The above paragraphs are here incorporated by reference.

67. The City's continuing failure to deter police misconduct has led to ever increasing numbers of lawsuits for repeat routine misconduct by the same officers, same units and same precincts. In 2009, New York City has seen a 46 percent jump in payouts to settle claims against the NYPD and has paid out more than \$117 million in fiscal year 2009, compared to \$80 million in 2008.¹ In the past ten years, the City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.²

68. The widely held assumption is that civil rights lawsuits deter police misconduct. "The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails. Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Piphus, 435 U.S. 247, 254-257, (1978). "As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts." See Hudson v.

¹ Mayor Michael Bloomberg's preliminary Management Report for FY 2009, available at http://www.nyc.gov/html/ops/downloads/pdf/_mmr/nypd.pdf, see page 115, last visited on February 18, 2010.

² "NYPD Has Paid Out Nearly \$1 Billion in Claims Over Past Decade," by Associated Press Writers Colleen Long and Jennifer Peltz, <http://www.law.com/jsp/article.jsp?id=1202473432953>, October 15, 2010 last available on December 9, 2010.

Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

69. However, the City of New York has isolated NYPD officers from accountability for its civil rights lawsuits and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a “a total disconnect” between the settlements of even substantial civil claims and police department action against officers. This “total disconnect” between officers’ liability and NYPD discipline, results in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

70. Upon information and belief, defendant Sergeant Daniel Sbarra has previously

been named in five other lawsuits for excessive force and false arrest in at least five other lawsuits: Jones v. City of New York, Docket No. 09-CV-01088-RRM-RML, (pending in the Eastern District of New York), Roberson v. City of New York et al, 06-CV-00213-CPS-RML, E.D.N.Y., Ingram et al v. City of New York, et al, 08-CV-01055-KAM-VVP, E.D.N.Y., McKoy v. The City of New York, et al, 08-CV-02022-ENV-RLM, E.D.N.Y., and Labrew v. The City of New York et al, 07-CV-04641-DAB, S.D.N.Y. All of these cases, except for Jones v. City of New York, have settled for a total \$171,500. Officer Vanzanten has been sued in one other lawsuit, Bissette v. City of New York et al, 10-cv-00801-FB-JO which also settled.

71. The City of New York does not track the lawsuits filed against Sergeant Sbarra or other officers and likewise does not track the amount of lawsuits filed per precinct or command. There is no mechanism through which Commanding Officers or Deputy Inspectors are alerted or can track how much liability their officers are within their precinct or command in terms of civil rights lawsuits. Sergeant Sbarra's duties as a supervisor have not been modified as a result of his multiple lawsuits and he continues to hold a leadership and supervisory role over subordinate police officers. His leadership and supervisory position, despite multiple civil rights lawsuits, sends a message to new police officers that the City of New York tolerates civil rights violations and that they may commit civil rights violations without punishment. The City's failure to review and digest lawsuits for patterns of misconduct and essentially turn a blind eye towards officers involved in multiple incidents of police brutality caused plaintiff's damages.

72. The City has further isolated the NYPD from being deterred by judicial review by not establishing a system through which to notify individual officers or their

supervisors of unfavorable judicial review of their conduct in suppression hearings and criminal trials. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings in both criminal and civil court that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

73. The aforesaid event underlying plaintiff's factual allegations was not an isolated incident nor was it isolated to defendants, despite evidence of their repeat routine misconduct. The City has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers unlawfully bring charges against citizens with no legal basis, use excessive force against citizens and create charges in an effort to cover up their misconduct, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

74. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors, in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the

New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.” See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.)(Weinstein, J.).

75. The City is aware that all of the aforementioned has resulted in violations of citizens’ constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiff’s civil rights, without fear of reprisal.

76. Plaintiff has been damaged as a result of the deliberate indifference of the Defendant City.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally, as follows:

- A. In favor of plaintiff in an amount to be determined by a jury for each of plaintiff’s causes of action;
- B. Awarding plaintiff punitive damages in an amount to be determined by a jury;
- C. Awarding plaintiff reasonable attorneys’ fees, costs and disbursements of this action; and
- D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

DATED: December 09, 2010
Brooklyn, New York

TO:

City of New York
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New York, NY 10007

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Detective Gary Vanzanten
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Respectfully yours,



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